

HOUSE No. 2353

The Commonwealth of Massachusetts

PRESENTED BY:

Thomas P. Walsh

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to hillside protection.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Thomas P. Walsh</i>	<i>12th Essex</i>	<i>1/15/2025</i>

HOUSE No. 2353

By Representative Walsh of Peabody, a petition (accompanied by bill, House, No. 2353) of Thomas P. Walsh for legislation to authorize cities and towns to establish ridgeline and hillside protection district review boards. Municipalities and Regional Government.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2120 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to hillside protection.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The General Laws, as appearing in the 2022 Official Edition, are hereby
2 amended by inserting after chapter 40Y the following chapter:-

3 CHAPTER 40Z. RIDGELINE AND HILLSIDE PROTECTION

4 Section 1. For purposes of this chapter the following words shall, unless the context
5 clearly requires otherwise, have the following meanings:

6 “Board”, the ridgeline and hillside protection district review board established pursuant to
7 section 3.

8 “District”, a ridgeline and hillside protection district.

9 “Hillside”, land having an average grade of 15 per cent or greater for 200 feet.

10 “Ridgeline” the long, narrow crest or horizontal line of hills or mountains, usually at the
11 highest elevation.

12 “Selective cutting”, no more than 50 per cent of the mature trees on a site cut under a
13 selective cutting plan.

14 “Substantial exterior alteration”, any alteration which increases the assessed value by
15 15%, or which adds to the height of a structure, or which substantially alters the visual profile of
16 the property or structures thereon.

17 Section 2. The purpose of this chapter is to promote the health, safety and general welfare
18 of the cities and towns that accept it by:

19 (i) insuring that any development that takes place within the ridgeline and hillside
20 protection district preserves and protects critical natural resource areas, minimizes visual impact
21 of man-made features and enhances the economic values of the properties located therein;

22 (ii) minimizing the removal of native vegetation, especially large timber, and regulating
23 the excavation and alteration of land in order to minimize any danger of erosion, flooding or
24 pollution of the ground or surface water supply, whether public or private, within the district or
25 any adjacent low lying areas;

26 (iii) insuring that all proposed development activities do not reduce property values
27 within the district or adjacent to by unnecessarily detracting from the visual setting or obstructing
28 significant views; and

(iv) protecting existing historical physical features and the preservation and development of linkages from 1 open space area to another.

Section 3. This chapter shall take effect in any city and town upon the approval by the legislative body.

A city or town that has voted to accept this chapter shall establish a ridgeline and hillside protection district review board, consisting of no more than 5 members, chosen by the chief executive officer of the city or town. Members of the board may also serve as members of the planning board for the city or town but shall not be members of a board of appeals under a subdivision control law or local zoning ordinance or by-law.

Section 4. Any area of a city or town that has accepted this chapter having a slope of greater than 15 per cent or greater over 200 feet or any elevation of 600 or more above sea level shall be designated as a ridgeline and hillside protection district by the city or town. The boundaries of each district shall be recorded on an overlay map to be kept on file with the city or town clerk.

Section 5. All uses of land included in a district that is not permitted pursuant to section 6 or section 7 shall be prohibited.

Section 6. The following uses shall be permitted in a ridgeline and hillside protection district without the need for application and review of the board:

(i) agricultural production, including but not limited to the raising of crops, livestock, poultry, nurseries, orchards, and hay;

(ii) recreational uses, provided there is minimal disruption of wildlife habitat;

(iii) maintenance and repair usual and necessary for continuance of an existing use, including work incidental to construction and the construction or alteration of any dwelling or structure that does not affect the exterior appearance of the dwelling or structure or any construction or alternation to the exterior of a dwelling or structure that would not result in a substantial exterior alteration;

(iv) conservation of water, plants, and wildlife, including the raising and management of wildlife;

(v) non-commercial cutting of trees for fuel;

(vi) uses permitted under section 3 of chapter 40A;

(vii) selective timber cutting shall be permitted within the area of a designated building envelope wherein principal and accessory structures have been approved. Timber cutting for the purpose of clearing land for legitimate agricultural purposes shall be permitted subject to satisfactory evidence of such intended use. Selective commercial timber cutting may be permitted, in accordance with chapter 132; and

(viii) selective cutting of trees or vegetation for normal maintenance purposes on less than one half acre of land, provided that no additional cutting shall be done on the parcel, or on adjoining parcels in common ownership, for a period of 2 years, except for selective cutting specified in a cutting plan approved in accordance with sections 40 to 46, inclusive, of chapter 132.

Section 7. The following uses shall be permitted in a district, subject to review and approval by the board pursuant to sections 8 and 9, prior to the issuance of a building permit,

special permit or approval of a definitive plan under the city's or town's bylaws and ordinances governing subdivisions:

(i) the construction for a new dwelling or principal structure;

(ii) any construction or alteration that would result in a substantial exterior alteration to the dwelling or structure;

(iii) any commercial or industrial use allowed by special permit in the underlying district; and

(iv) any subdivision which requires approval under the city or town's bylaws or ordinances governing subdivisions;

The board may waive the requirement that it review and approve uses pursuant to this section for dwelling additions, and or accessory buildings of 400 square feet or less.

Section 8. Buildings and landscaping permitted under section 7 shall be designed and located on the site to blend with the natural terrain and vegetation, and to preserve the scenic character of the site, conforming to the following standards:

(i) Building height shall not exceed 35 feet.

(ii) Exposed foundation walls shall not exceed 2 feet above the proposed finished grade;

(iii) Building, alterations, additions, or structures should be placed downgrade of the ridgeline where possible;

(iv) Building materials shall blend with the natural landscape.

(v) Removal of native vegetation, especially large timber, shall be minimized and the replacement of vegetation and landscaping shall be generally compatible with the vegetation of the designated area.

(vi) Trees may only be removed for location and construction of streets, driveways or structures. Selective clearing for views is permitted where the view is obstructed by dense vegetation.

(vii) Retaining walls, of natural materials only, may be used to create usable yard space in the side and rear yard.

(viii) Landscaping and plantings shall be utilized to screen major buildings in open or prominent areas from significant views, both when installed and when mature.

(ix) Any grading or earth moving operation is to be planned and executed in such a manner that final contours appear to be consistent with the existing terrain, both on and adjacent to the site.

(x) Storage or transmission of petroleum or other refined petroleum products is prohibited except within buildings which will be heated or in quantities of 50 gallons or less. Petroleum products stored within a building shall be placed on a diked or impermeable surface to prevent spills or leaks from reaching groundwater.

(xi) All run-off from impervious surfaces shall be recharged on the site by being diverted to storm water infiltration basins covered with natural vegetation. Storm water infiltration basins must be designed to handle a 25-year storm. Dry wells shall be used only where other methods are infeasible, and shall be preceded by oil, grease, and sediment traps to facilitate removal of

contamination. Any and all recharge areas shall be permanently maintained in full working order by the owner.

(xii) No area or areas totaling 2 acres or more on any parcel or contiguous parcels in the same ownership shall have existing vegetation stripped or be filled 6 inches or more so as to destroy existing vegetation unless in conjunction with agricultural activity or unless necessarily incidental to construction on the premises under a currently valid building permit or unless within streets which are either public or designated on an approved subdivision plan or unless a special permit is approved by the zoning board of appeals on the condition that run-off will be controlled, erosion avoided and either a constructed surface or cover vegetation will be provided not later than the first full spring season immediately following completion of the stripping operation. No stripped area or areas which are allowed by special permit shall remain through the winter without a temporary cover or winter rye or similar plant materials being provided for soil control, except in the case of agricultural activity where such temporary cover would be infeasible.

(xiii) Sediment and erosion control measures shall be employed to minimize such impacts during and after construction, in accordance with guidelines established by the United States Natural Resources Conservation Service "Guidelines for Soil and Water Conservation in Urbanizing Areas of Massachusetts."

(xiv) Utilities shall be constructed and routed underground except in those situations where natural features prevent the underground siting or where safety considerations necessitate above ground construction and routing. The Review Board may waive this requirement.

(xv) Above ground utilities shall be constructed and routed to minimize detrimental effects on the visual setting.

(xvi) In the building of more than 1 structure, variable setbacks, multiple orientations, and other site planning techniques shall be incorporated in order to avoid the appearance of a solid line of development.

(xvii) Construction of a tower, satellite dish, windmill, any type of antenna, or other installation shall not obstruct the view of a public way, or from a public way, or from an abutter's dwelling.

Section 9. (a) Prior to undertaking any work in a ridgeline and hillside protection district, including clearing and removal of vegetation, grading or construction, but not including any use permitted pursuant to section 6, and prior to applying for a building permit, landowners shall submit an application for ridgeline and hillside protection review to the board. The building inspector shall not accept an application for a building permit without an attached application for ridgeline and hillside protection review, previously reviewed and approved by the board, unless the inspector determines that the work being undertaken by the application would be considered a permitted use pursuant to section 6. To assist in making such a determination, the building inspector may request the board to provide an opinion, in writing, as to whether the landowner's proposed work under the building permit constitutes a permitted use pursuant to section 6 or requires application and review pursuant to subsection 7. If the board fails to respond to the building inspector within 20 days, the building inspector shall conclude that the landowner's proposed work constitutes a permitted use pursuant to section 6. If the board determines that the landowner's proposed work under the building permit requires the review and approval of the

154 board pursuant to subsection 7, the board shall immediately notify the building inspector and the
155 landowner in writing.

156 (b) Within 35 days of the receipt of the application for ridgeline and hillside protection
157 review from a landowner, the board shall review the application and return its recommendations
158 in writing to the building inspector. If the application for ridgeline and hillside protection review
159 is associated with an application for a variance, special permit, or subdivision review, the board
160 shall immediately transmit their recommendations to the planning board or zoning board of
161 appeals as appropriate. If the board does not submit its recommendations within 35 days, such
162 failure to act shall constitute approval of the application.

163 (c) Applications for ridgeline and hillside protection district review of proposed
164 development in the district must be accompanied by the following:

165 (i) Plot Plan;

166 (ii) Photographs of the development site taken from points along the street, together with
167 a map indicating the distance between these points and the site; and

168 (iii) Placement, height and physical characteristics of all existing and proposed buildings
169 and structures located on the development site.

170 (d) After review of an application the board may:

171 (i) determine that the proposed work constitutes a suitable development or construction
172 project entirely in compliance with the criteria set forth in section 8;

173 (ii) approve the work, subject to conditions, modifications, and restrictions as the board
174 may deem necessary;

(iii) determine that the work, as a whole, is not permitted under the chapter or is otherwise wholly inconsistent with the terms of section 8.

(e) A landowner aggrieved by a decision of the board may appeal to the zoning board of appeals. If the zoning board of appeals finds that a literal enforcement of the provisions of this chapter would involve substantial hardship, financial or otherwise, to the landowner, and that desirable relief may be granted without substantial detriment to the public good and without nullifying or substantially derogating from the intent or purpose of this chapter, it may exempt a landowner from the provisions of this chapter. The board of appeals may adopt rules to implement this subsection.

Section 10. The board may adopt rules, not inconsistent with the provisions of this chapter, for the conduct of its business and for the purposes of this chapter. Any such rules shall be filed with the city or town clerk.

SECTION 2. This act shall not apply to any work or project completed prior to the effective date of this act.